

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1914

By: Alonso-Sandoval

AS INTRODUCED

An Act relating to railroads; defining terms; requiring certain documents and identification to operate a train; mandating penalties; requiring certain types of notice for violations; allowing certain department to assess penalties; directing all monies collected to be deposited in certain fund; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 342 of Title 66, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Branch line" means a secondary railroad track that branches off from a main railroad line;

2. "Conductor" means a conductor, switchman, brakeman, trainman, or fireman, who is licensed and certified by the Federal Railroad Administration;

3. "Engineer" means an engineer who is licensed and certified by the Federal Railroad Administration;

1 4. "Main line" shall mean a Class I railroad, as documented in
2 current timetables filed by the Class I railroad with the Federal
3 Railroad Administration, over which five million or more gross tons
4 of railroad traffic are transported annually or used for regularly
5 scheduled intercity or commuter rail passenger service, or both;

6 5. "Physical manifest document" means tangible paper
7 documentation of railroad train freight inventory and any applicable
8 train engine data;

9 6. "Railroad management" means a rail employee overseeing and
10 assisting in rail transit operation; and

11 7. "Tangible railroad identification" means physical railroad
12 identification that is not electronic with Federal Railroad
13 Administration conductor or engineer certification.

14 B. 1. No railroad operating inside this state on any main
15 track or branch line shall run, or permit to be run, any train which
16 is not traveling with at least one copy of the physical manifest
17 documents, a current physical copy of the Emergency Response Guide,
18 and a current physical copy of 49 CFR Part 240 and 242 certificate
19 for identification purposes.

20 2. No conductor, engineer, railroad management, or railroad or
21 public transit employee operating in this state on any main track or
22 branch line, shall run or permit to be run, any train which is not
23 traveling with tangible railroad identification.

1 3. Any person or railroad corporation that violates any
2 provisions of this act shall be liable for a civil penalty of at
3 least Two Thousand Five Hundred Dollars (\$2,500.00) but not more
4 than Ten Thousand Dollars (\$10,000.00). A separate violation of
5 this section shall occur each day a railroad is not in compliance.
6 When a grossly negligent violation or pattern of repeated violations
7 has occurred which results in an imminent hazard of death or injury
8 to individuals or has caused a death or injury, a one-time fine up
9 to Two Hundred Fifty Thousand Dollars (\$250,000.00) may be imposed.
10 The Department of Transportation may assess penalties for any
11 violation of this section. Notice of a violation of this section
12 shall be communicated to the railroad by two separate means.
13 Acceptable means of communication may include electronic mail,
14 telephone, U.S. mail, or text message. All amounts collected shall
15 be deposited in the Oklahoma Railroad Maintenance Revolving Fund
16 established pursuant to Section 309 of Title 66 of the Oklahoma
17 Statutes.

18 SECTION 2. This act shall become effective November 1, 2025.
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